



U.S. Department  
of Transportation  
**Research and  
Special Programs  
Administration**

400 Seventh St., S.W.  
Washington, D.C. 20590

**APR 15 2003**

DOT-E 8278  
(FIFTH REVISION)

|                                 |
|---------------------------------|
| EXPIRATION DATE: March 31, 2005 |
|---------------------------------|

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Maintenance Mechanical Division of  
Certified Technical Services  
Pasadena, TX
2. PURPOSE AND LIMITATIONS:
  - a. This exemption authorizes the manufacture, mark, sale and use of a non-DOT specification container described as a mechanical displacement meter prover to be used for the transportation in commerce of the Division 2.1 and Class 3 materials identified in paragraph 6 below. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.201, 173.202, 173.203, and 173.304a in that a non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of Maintenance Mechanical Division of Certified Technical Services dated March 24, 2003, submitted in accordance with § 107.109.

APR 15 2003

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Proper Shipping Name/<br>Hazardous Material Description        | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|----------------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Gasoline                                                       | 3                            | UN1203                        | II               |
| Petroleum Crude Oil                                            | 3                            | UN1267                        | I, II,<br>& III  |
| Petroleum Distillates, n.o.s.<br>or Petroleum Products, n.o.s. | 3                            | UN1268                        | I, II,<br>& III  |
| Petroleum Gases, Liquefied or<br>Liquefied Petroleum Gas       | 2.1                          | UN1075                        | N/A              |
| Petroleum Oil                                                  | 3                            | NA1270                        | I, II,<br>& III  |

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Prescribed packagings are non-DOT specification containers described as mechanical displacement meter provers complying with Maintenance Mechanical Corporation's drawings C-5734-PR, D-5267-PR, C-7115-PR or D-5481-PR mounted on trucks or trailers. The provers consist of pipes having an internal volume varying from 42 to 420 gallons, designed to ANSI B31.4 standards. In addition:
- b. The bumper for the truck or trailer must meet the requirements of § 393.86.
- c. The pressure rating as determined from the pipe component with the lowest pressure rating must be marked on each truck or trailer.
- d. During transportation, the pressure in the prover must not exceed 50 percent of pipe pressure rating at ambient temperature.
- e. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

APR 15 2003

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.

b. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modification or change is made to the package or its contents and it is offered for transportation in conformance with this exemption and the HMR.

c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.

e. A current copy of this exemption must be maintained at each facility where the package is manufactured under this exemption. It must be made available to a DOT representative upon request.

f. Each prover must be visually reinspected once a year and retested once every 5 years at not less than 75 percent of the prover's design pressure in accordance with § 173.32(e).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

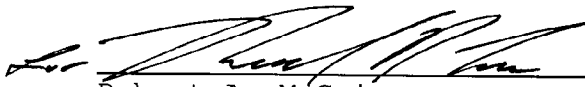
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued in Washington, D.C.

  
Robert A. McGuire  
Associate Administrator for  
Hazardous Materials Safety

**APR 15 2003**

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: ALB